

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 38-019

**Amendments to Title 5 and Title 17 of the Chickasaw Nation Code
(Domestic Violence)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for domestic violence, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 9, Section 901.2, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 5-901.2

ARREST.

* * *

B. A police or law enforcement officer may make an arrest in obedience to an arrest warrant, or he may, without a warrant, arrest a person:

* * *

3. anywhere, including a place of residence of the person, if the police or law enforcement officer has probable cause to believe the person within the preceding seventy-two (72) hours has committed an act of domestic violence as defined by Chapter 17, Chapter 5, of the Chickasaw Nation Code, although the act of domestic violence did not take place in the presence of the police or law enforcement. A police or law enforcement officer may not arrest a person pursuant to this section without first observing a recent physical injury to, or an impairment of the physical condition of, the alleged victim.

* * *

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 17, Chapter 5, Sections 17-501.3 and 17-501.4, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 17-501.3 **DOMESTIC VIOLENCE.**

A. ~~For purpose of Title 5, Chapter 4, Domestic Violence Court, it~~ shall be unlawful to willfully commit one of the following upon a Domestic or Dating Partner:

* * *

B. ~~For all other purposes, it shall be unlawful to willfully commit one of the following upon a Domestic or Dating Partner, a family member, or a household member:~~

1. ~~cause or attempt to cause physical or emotional harm or mental anguish;~~
2. ~~place in a reasonable fear of physical harm to themselves or another family member. This fear may be produced by behavior which induces fear in the victim by harassment, intimidation, stalking, destruction of property, or physical harm or threat of physical harm to household pets;~~
3. ~~engage in any sexual act by force or coercion; or~~
4. ~~use or offer to use force or violence.~~

~~BC.~~ A Domestic or Dating Partner within this section means:

1. a current or former spouse or intimate partner;
2. a person with whom the victim shares a child in common; or
3. a person who is cohabitating with or has cohabitated with the perpetrator as a spouse or intimate partner; or
4. a person who is or has been in a social relationship of a romantic or intimate nature with the perpetrator, as determined by the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved in the relationship.

~~CD.~~ For purposes of this Section, a Domestic or Dating Partner does not include a neighbor, co-worker, casual acquaintance, or the ordinary fraternization between persons in a business or social context unless otherwise set out above.

~~DE~~. Domestic Violence shall be punishable by a fine not exceeding five thousand dollars (\$5,000) or imprisonment not exceeding one (1) year, or both such fine and imprisonment.

~~EF~~. A second or subsequent conviction of Domestic Violence shall be punishable by a fine not exceeding fifteen thousand dollars (\$15,000) or imprisonment not exceeding three (3) years, or both.

~~FG~~. In addition to any other penalty specified by this Section, the Court may require a defendant to participate and complete a batterer's intervention program or similar program.

SECTION 17-501.4

DOMESTIC VIOLENCE BY STRANGULATION.

A. ~~For purpose of Title 5, Chapter 4, Domestic Violence Court, it~~ shall be unlawful for any person to willfully cause domestic violence by strangulation or attempting to cause strangulation upon a Domestic or Dating Partner.

B. ~~For all other purposes, it shall be unlawful for any person to willfully cause domestic violence by strangulation or attempting to cause strangulation upon a Domestic or Dating Partner, a family member, or a household member.~~

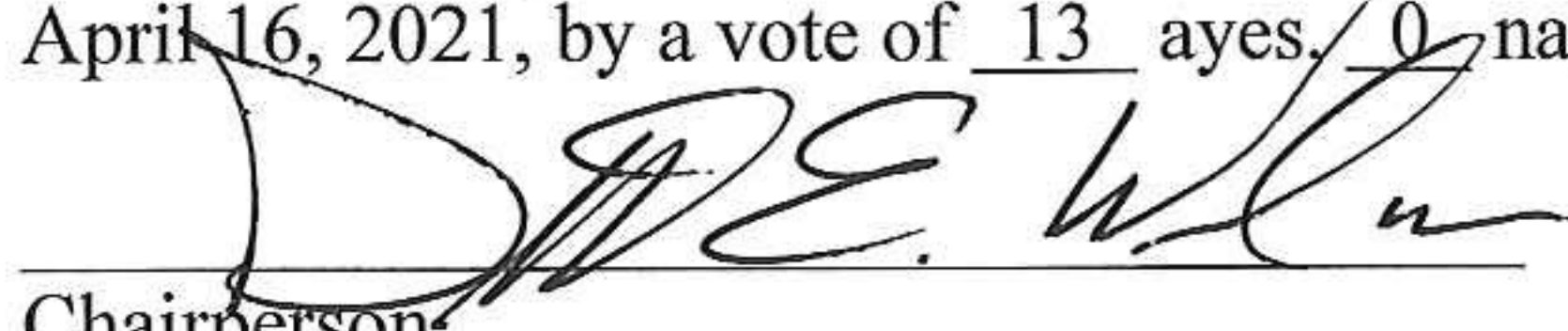
BC. For purposes of this section, "strangulation" means any form of asphyxia, including but not limited to, asphyxia characterized by the closure of the blood vessels or air passages of the neck as a result of external pressure on the neck however slight or the closure of the nostrils or mouth as a result of external pressure on the head.

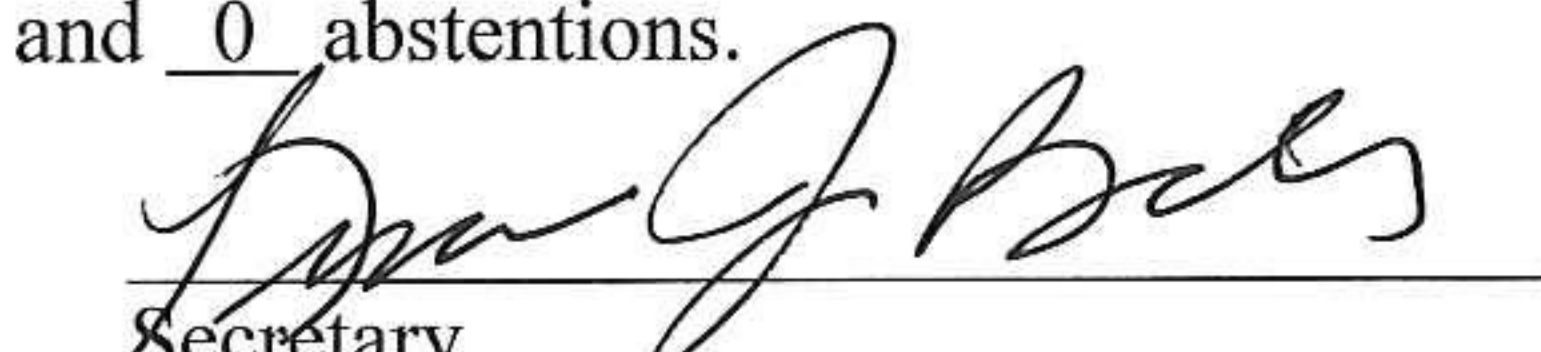
~~CD~~. A Domestic or Dating Partner shall mean the same as within Section 17-501.3.

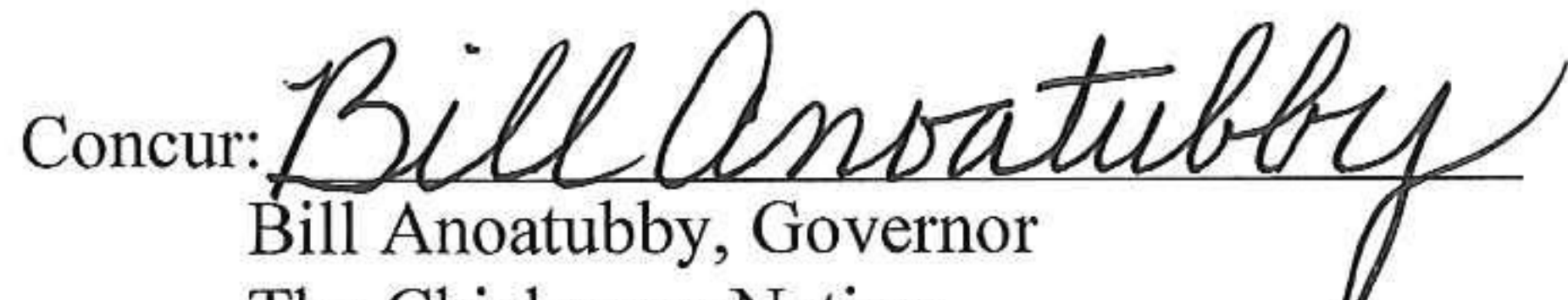
~~DE~~. Domestic Violence by Strangulation shall be punished by a fine not less than one thousand dollars (\$1,000) nor more than fifteen thousand (\$15,000), or by imprisonment for a mandatory period not less than sixty (60) days nor more than three (3) years, or by both.

~~EF~~. In addition to any other penalty specified by this Section, the Court may require a defendant to participate and complete a batterer's intervention program or similar program.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 16, 2021, by a vote of 13 ayes, 0 nays and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: APR 16 2021

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(Domestic Violence)

Explanation:

This resolution amends one section in Title 5 and two sections in Title 17. The provisions set forth the procedures for a warrantless arrest for domestic violence offenses and expand the domestic violence offenses to include violence upon a family and household members.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature